

ATTORNEY OR PARTY WITHOUT ATTORNEY NAME: Chad S. Tapp, SBN 214898; Tyler J. O'Connell, SBN 346673 FIRM NAME: PORTER SCOTT STREET ADDRESS: 2180 Harvard Street, Suite 500 CITY: Sacramento STATE: CA ZIP CODE: 95815 TELEPHONE NO.: (916) 929-1481 FAX NO.: (916) 927-3706 EMAIL ADDRESS: ctapp@porterscott.com; toconnell@porterscott.com ATTORNEY FOR (name): Defendants: CSAA Insurance, Carbone, Smith, Koyama; Chambers	FOR COURT USE ONLY ELECTRONICALLY FILED <i>Superior Court of California, County of San Francisco</i> 05/01/2026 Clerk of the Court BY: JEFFREY FLORES Deputy Clerk
SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO STREET ADDRESS: 400 McAllister Street MAILING ADDRESS: CITY AND ZIP CODE: San Francisco, 94102 BRANCH NAME: Civic Center Courthouse	
PLAINTIFF/PETITIONER: Franciscus Dylan Rosario DEFENDANT/RESPONDENT: CSAA Insurance; Carbone, Smith & Koyama; and Chambers	
CASE MANAGEMENT STATEMENT (Check one): ☒ UNLIMITED CASE ☐ LIMITED CASE (Amount demanded exceeds \$35,000) (Amount demanded is \$35,000 or less)	CASE NUMBER: CGC-25-631801
A CASE MANAGEMENT CONFERENCE is scheduled as follows: Date: May 27, 2026 Time: 10:30am Dept.: 610 Div.: Room: Address of court (if different from the address above): ☒ Notice of Intent to Appear by Telephone, by (name): Chad S. Tapp or Tyler J. O'Connell	

INSTRUCTIONS: All applicable boxes must be checked, and the specified information must be provided.

1. **Party or parties (answer one):**
 - a. ☒ This statement is submitted by party (name): Defendants: CSAA Insurance; Carbone, Smith & Koyama; and Chambers
 - b. ☐ This statement is submitted **jointly** by parties (names):
2. **Complaint and cross-complaint (to be answered by plaintiffs and cross-complainants only)**
 - a. The complaint was filed on (date):
 - b. ☐ The cross-complaint, if any, was filed on (date):
3. **Service (to be answered by plaintiffs and cross-complainants only)**
 - a. ☐ All parties named in the complaint and cross-complaint have been served, have appeared, or have been dismissed.
 - b. ☐ The following parties named in the complaint or cross-complaint
 - (1) ☐ have not been served (specify names and explain why not):
 - (2) ☐ have been served but have not appeared and have not been dismissed (specify names):
 - (3) ☐ have had a default entered against them (specify names):
 - c. ☐ The following additional parties may be added (specify names, nature of involvement in case, and date by which they may be served):
4. **Description of case**
 - a. Type of case in ☒ complaint ☐ cross-complaint (Describe, including causes of action):
 Plaintiff has filed this action in an effort to vacate the judgment, and unwind a valid Jury verdict, from Plaintiff's underlying loss at trial by defense verdict in a case entitled Rosario v. Abdelhalim, et al., San Francisco County Case No. CGC-21-594102.

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4. b. Provide a brief statement of the case, including any damages (*if personal injury damages are sought, specify the injury and damages claimed, including medical expenses to date [indicate source and amount], estimated future medical expenses, lost earnings to date, and estimated future lost earnings; if equitable relief is sought, describe the nature of the relief*):
 Plaintiff claims that the Court erred in refusing to allow admission of certain evidence at Plaintiff's underlying loss at trial by defense verdict in a case entitled Rosario v. Abdelhalim, et al., S.F. County Case No. CGC-21-594102.
 Plaintiff has also filed an appeal, of the underlying case. That appeal remains pending.

☒ (If more space is needed, check this box and attach a page designated as Attachment 4b.)

5. **Jury or nonjury trial**

The party or parties request ☐ a jury trial ☒ a nonjury trial. (*If more than one party, provide the name of each party requesting a jury trial*):

Defendants: CSAA Insurance; Carbone, Smith & Koyama; and Chambers

6. **Trial date**

a. ☐ The trial has been set for (*date*):

b. ☒ No trial date has been set. This case will be ready for trial within 12 months of the date of the filing of the complaint (*if not, explain*):

Plaintiff's appeal remains pending, and all allegations in this pending case are issues for appeal; not this pending action.

c. Dates on which parties or attorneys will not be available for trial (*specify dates and explain reasons for unavailability*):
 6/1/26, 7/27/26, 8/5/26, 9/14/26, 11/13/26, 12/11/26, 12/16/26, 1/11/27, 1/21/27, 1/25/27

7. **Estimated length of trial**

The party or parties estimate that the trial will take (*check one*)

a. ☒ days (*specify number*): 1

b. ☐ hours (short causes) (*specify*):

8. **Trial representation (to be answered for each party)**

The party or parties will be represented at trial ☒ by the attorney or party listed in the caption ☐ by the following:

a. Attorney:

b. Firm:

c. Address:

d. Telephone number:

f. Fax number:

e. Email address:

g. Party represented:

☐ Additional representation is described in Attachment 8.

9. **Preference**

☐ This case is entitled to preference (*specify code section*):

10. **Alternative dispute resolution (ADR)**

a. **ADR information package.** Please note that different ADR processes are available in different courts and communities; read the ADR information package provided by the court under rule 3.221 of the California Rules of Court for information about the processes available through the court and community programs in this case.

(1) For parties represented by counsel: Counsel ☐ has ☒ has not provided the ADR information package identified in rule 3.221 to the client and reviewed ADR options with the client.

(2) For self-represented parties: Party ☐ has ☐ has not reviewed the ADR information package identified in rule 3.221.

b. **Referral to judicial arbitration or civil action mediation (if available).**

(1) ☐ This matter is subject to mandatory judicial arbitration under Code of Civil Procedure section 1141.11 or to civil action mediation under Code of Civil Procedure section 1775.3 because the amount in controversy does not exceed the statutory limit.

(2) ☐ Plaintiff elects to refer this case to judicial arbitration and agrees to limit recovery to the amount specified in Code of Civil Procedure section 1141.11.

(3) ☐ This case is exempt from judicial arbitration under rule 3.811 of the California Rules of Court or from civil action mediation under Code of Civil Procedure section 1775 et seq. (*specify exemption*):

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10. c. In the table below, indicate the ADR process or processes that the party or parties are willing to participate in, have agreed to participate in, or have already participated in (*check all that apply and provide the specified information*):

	The party or parties completing this form are willing to participate in the following ADR processes (<i>check all that apply</i>):	If the party or parties completing this form in the case have agreed to participate in or have already completed an ADR process or processes, indicate the status of the processes (<i>attach a copy of the parties' ADR stipulation</i>):
(1) Mediation	☐	☐ Mediation session not yet scheduled ☐ Mediation session scheduled for (date): ☐ Agreed to complete mediation by (date): ☐ Mediation completed on (date):
(2) Settlement conference	☐	☐ Settlement conference not yet scheduled ☐ Settlement conference scheduled for (date): ☐ Agreed to complete settlement conference by (date): ☐ Settlement conference completed on (date):
(3) Neutral evaluation	☐	☐ Neutral evaluation not yet scheduled ☐ Neutral evaluation scheduled for (date): ☐ Agreed to complete neutral evaluation by (date): ☐ Neutral evaluation completed on (date):
(4) Nonbinding judicial arbitration	☐	☐ Judicial arbitration not yet scheduled ☐ Judicial arbitration scheduled for (date): ☐ Agreed to complete judicial arbitration by (date): ☐ Judicial arbitration completed on (date):
(5) Binding private arbitration	☐	☐ Private arbitration not yet scheduled ☐ Private arbitration scheduled for (date): ☐ Agreed to complete private arbitration by (date): ☐ Private arbitration completed on (date):
(6) Other (<i>specify</i>):	☐	☐ ADR session not yet scheduled ☐ ADR session scheduled for (date): ☐ Agreed to complete ADR session by (date): ☐ ADR completed on (date):

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11. Insurance

- a. ☐ Insurance carrier, if any, for party filing this statement (*name*):
 b. Reservation of rights: ☐ Yes ☐ No
 c. ☐ Coverage issues will significantly affect resolution of this case (*explain*):

12. Jurisdiction

Indicate any matters that may affect the court's jurisdiction or processing of this case and describe the status.

☐ Bankruptcy ☐ Other (*specify*):

Status:

13. Related cases, consolidation, and coordination

- a. ☒ There are companion, underlying, or related cases.
 (1) Name of case: Rosario v. Abdelhalim, et al.
 (2) Name of court: San Francisco County
 (3) Case number: CGC-21-594102
 (4) Status: Jury Verdict for Defense, Judgment Entered; Plaintiff still owes \$76,308.90 in Court awarded costs to Def.
☒ Additional cases are described in Attachment 13a.
 b. ☐ A motion to ☒ consolidate ☐ coordinate will be filed by (*name party*):
 Defendants: CSAA Insurance; Carbone, Smith & Koyama; and Chambers

14. Bifurcation

- ☐ The party or parties intend to file a motion for an order bifurcating, severing, or coordinating the following issues or causes of action (*specify moving party, type of motion, and reasons*):

15. Other motions

- ☒ The party or parties expect to file the following(*specify moving party, type of motion, and issues*): Defendants: CSAA Insurance; Carbone, Smith & Koyama; and Chambers: Anti-SLAPP motion (filed: hearing set for 5/12/2026); Demurrer (filed: hearing set for 5/12/2026); Motion to Strike, CCP 436 (filed: hearing set for 5/12/2026). Defendants anticipate filing MSJ/MSA should the pleadings survive the initial motions challenging pleadings and Defendants' may file a motion to have plaintiff deemed a vexatious litigant

16. Discovery

- a. ☐ The party or parties have completed all discovery.
 b. ☐ The following discovery will be completed by the date specified (*describe all anticipated discovery*):

<u>Party</u>	<u>Description</u>	<u>Date</u>
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- c. ☒ The following discovery issues, including issues regarding the discovery of electronically stored information, are anticipated (*specify*):
 Plaintiff has served a large amount of written discovery; despite Defendants' pending Anti-SLAPP motion. Plaintiff has also filed motions to compel discovery / have matters deemed admitted; again, despite Defendants' pending Anti-SLAPP motion.

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17. Economic litigation

- a. ☐ This is a limited civil case (i.e., the amount demanded is \$35,000 or less) and the economic litigation procedures in Code of Civil Procedure sections 90-98 will apply to this case.
- b. ☐ This is a limited civil case and a motion to withdraw the case from the economic litigation procedures or for additional discovery will be filed *(if checked, explain specifically why economic litigation procedures relating to discovery or trial should not apply to this case)*:

18. Other issues

- ☒ The party or parties request that the following additional matters be considered or determined at the case management conference *(specify)*:
 Plaintiff's disregard for Court rules, improper filings, burdensome and harassing discovery tactics, violations of the Stay on discovery and pleading amendment (in light of Defendants' pending Anti-SLAPP motion.)

19. Meet and confer

- a. ☒ The party or parties have met and conferred with all parties on all subjects required by rule 3.724 of the California Rules of Court *(if not, explain)*:
 Defendants' counsel has met and conferred extensively with Plaintiff on the pleadings; Defendants' pending Anti-SLAPP motion, Demurrer, and Motion to Strike per CCP 436; and Plaintiff's continued efforts to amend the pleadings and serve discovery, despite Defendants' pending Anti-SLAPP motion.
- b. ☐ After meeting and conferring as required by rule 3.724 of the California Rules of Court, the parties agree on the following *(specify)*:

20. Total number of pages attached *(if any)*: 1

I am completely familiar with this case and will be fully prepared to discuss the status of discovery and alternative dispute resolution, as well as other issues raised by this statement, and will possess the authority to enter into stipulations on these issues at the time of the case management conference, including the written authority of the party where required.

Date: May 1, 2026

Tyler J. O'Connell

(TYPE OR PRINT NAME)



Tyler J. O'Connell

(SIGNATURE OF PARTY OR ATTORNEY)



(SIGNATURE OF PARTY OR ATTORNEY)

☐ Additional signatures are attached.

SHORT TITLE: Rosario v CSAA Insurance Exchange; et al.	CASE NUMBER: CGC-25-631801
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ATTACHMENT (Number): 4b

(This Attachment may be used with any Judicial Council form.)

Plaintiff's First Amended Complaint ("FAC") presents an improper collateral attack on a valid jury verdict and judgment entered by this Court following a full and fair trial in April 2025. Rather than pursue relief through the appellate process—which Plaintiff has in fact already initiated—Plaintiff attempts to relitigate all the same issues previously raised, litigated, and rejected by the jury and the Court. Plaintiff now targets the original defendant's insurance carrier (and all defense counsel) for proper and required litigation conduct.

The entire premise of Plaintiff's current lawsuit presents the erroneous and speculative theory that the entire defense team lied to this Court about evidence that was actually presented at trial, but which Plaintiff was unable to use effectively before the jury. In short, the jury considered the evidence Plaintiff complains about, but the jury simply disagreed with Plaintiff on its importance. Setting aside the plethora of factual errors, Plaintiff's FAC, on its face, is subject to demurrer and an Anti-SLAPP motion because Plaintiff's claims, even if true, cannot obtain the requested relief.

(If the item that this Attachment concerns is made under penalty of perjury, all statements in this Attachment are made under penalty of perjury.)

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(Add pages as required)

SHORT TITLE: Rosario v CSAA Insurance Exchange; et al.	CASE NUMBER: CGC-25-631801
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ATTACHMENT (Number): 13a

(This Attachment may be used with any Judicial Council form.)

13a. Rosario v. CSAA Insurance Exchange S.F. County Case No. CGC-25-631-802.

(If the item that this Attachment concerns is made under penalty of perjury, all statements in this Attachment are made under penalty of perjury.)

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(Add pages as required)

3 **PROOF OF SERVICE**

4 At the time of service, I was over 18 years of age and not a party to this action. My business
5 address is 2180 Harvard Street, Suite 500, Sacramento, California 95815.

6 On May 1, 2026, I served the following document:

7 **CASE MANAGEMENT STATEMENT**

8 X	BY REGISTERED/CERTIFIED MAIL, RETURN RECEIPT REQUESTED: I caused to be served the above referenced document(s) by registered or certified mail, return receipt requested, with the United States Postal Service, in a sealed envelope with postage fully prepaid.
9	BY PERSONAL SERVICE: I caused such document to be personally delivered to the person(s) addressed below. (1) For a party represented by an attorney, delivery was made to the attorney or at the attorney's office by leaving the documents, in an envelope or package clearly labeled to identify the attorney being served, with a receptionist or an individual in charge of the office, between the hours of nine in the morning and five in the evening. (2) For a party, delivery was made to the party or by leaving the documents at the party's residence with some person not younger than 18 years of age between the hours of eight in the morning and six in the evening.
10	BY OVERNIGHT DELIVERY: I enclosed the documents in an envelope or package provided by an overnight delivery carrier and addressed to the person(s) listed below. I placed the envelope or package for collection and overnight delivery at my office or a regularly utilized drop box of the overnight delivery carrier.
11	BY ELECTRONIC TRANSMISSION: By electronically serving the document(s) to the electronic mail address set forth below on this date before 11:59 p.m. pursuant to Code of Civil Procedure section 1010.6(a)(2), (4) and (5).

12 Addressed as follows:

13 **PLAINTIFF, IN PRO PER**

14 Franciscus Dylan Rosario
15 7624 Melody Drive
16 Rohnert Park, CA 94928
17 soltrinox@gmail.com

18 I declare under penalty of perjury under the laws of the State of California that the foregoing
19 is true and correct. Executed on Sacramento, California on May 1, 2026.

20 *Serena Blithe*
21 Serena Blithe